trust&will

Power of Attorney Instructions for John Smith

Read & review

Review the document carefully. State law requires that this document is completed by hand. There are important instructions in the document. There may be additional sections for you to complete by initialing, providing additional information, or selecting which options you want to apply.

Complete the required info

Add the required info for each agent you wish to designate. Add any other information and complete any other required sections throughout the document.

Notify your agents

Make sure your agent(s) understand their responsibilities and are aware of their role.

Sign & notarize

Sign with a notary public. Your agents will also need to sign. Store the original signed copy in a safe place. You can give your agent(s) a copy of the final signed form to use, if needed.

Disclaimer
Trust & Will is not a law firm and does not provide legal advice. While Trust & Will strives to ensure all of our documents are accurate and complete, they are not a substitute for the advice of a qualified attorney.

Uniform Statutory Form Power of Attorney for John Smith

(California Probate Code Section 4401)

NOTICE: THE POWERS GRANTED BY THIS DOCUMENT ARE BROAD AND SWEEPING. THEY ARE EXPLAINED IN THE UNIFORM STATUTORY FORM POWER OF ATTORNEY ACT (CALIFORNIA PROBATE CODE SECTIONS 4400–4465). THE POWERS LISTED IN THIS DOCUMENT DO NOT INCLUDE ALL POWERS THAT ARE AVAILABLE UNDER THE PROBATE CODE. ADDITIONAL POWERS AVAILABLE UNDER THE PROBATE CODE MAY BE ADDED BY SPECIFICALLY LISTING THEM UNDER THE SPECIAL INSTRUCTIONS SECTION OF THIS DOCUMENT. IF YOU HAVE ANY QUESTIONS ABOUT THESE POWERS, OBTAIN COMPETENT LEGAL ADVICE. THIS DOCUMENT DOES NOT AUTHORIZE ANYONE TO MAKE MEDICAL AND OTHER HEALTHCARE DECISIONS FOR YOU. YOU MAY REVOKE THIS POWER OF ATTORNEY IF YOU LATER WISH TO DO SO.

I, John Smith, of 123 Sunnyside Ln, Springfield, LA, 90210 appoint:

Agent's name: _____

Agent's address: _____

– AND – *Optional*

Agent's name: _____

Agent's address: _____

as my agent (attorney-in-fact) to act for me in any lawful way with respect to the following initialed subjects:

TO GRANT ALL OF THE FOLLOWING POWERS, INITIAL THE LINE IN FRONT OF (N) AND IGNORE THE LINES IN FRONT OF THE OTHER POWERS.

TO GRANT ONE OR MORE, BUT FEWER THAN ALL, OF THE FOLLOWING POWERS, INITIAL THE LINE IN FRONT OF EACH POWER YOU ARE GRANTING.

TO WITHHOLD A POWER, DO NOT INITIAL THE LINE IN FRONT OF IT. YOU MAY, BUT NEED NOT, CROSS OUT EACH POWER WITHHELD.

Initial

_____ (A) Real property transactions.

_____ (B) Tangible personal property transactions.

_____ (C) Stock and bond transactions.

_____ (D) Commodity and option transactions.

_____ (E) Banking and other financial institution transactions.

_____ (F) Business operating transactions.

_____ (G) Insurance and annuity transactions.

_____ (H) Estate, trust, and other beneficiary transactions.

_____ (I) Claims and litigation.

_____ (J) Personal and family maintenance.

_____ (K) Benefits from Social Security, Medicare, Medicaid, or other governmental programs, or civil or military service.

_____ (L) Retirement plan transactions.

_____ (M) Tax matters.

_____ (N) ALL OF THE POWERS LISTED ABOVE.
YOU NEED NOT INITIAL ANY OTHER LINES IF YOU INITIAL LINE (N).

Special Instructions

ON THE FOLLOWING LINES YOU MAY GIVE SPECIAL INSTRUCTIONS LIMITING OR EXTENDING THE POWERS GRANTED TO YOUR AGENT.

1. **General Power to Agent**: I grant my agent full power and authority to act for me and in my name, in any lawful way, in all matters, and in all affairs. This authority does not include any authority to make health care decisions for me.

2. **Additional Specific Powers:** In addition to all other powers and authorities granted by this document, I additionally grant my agent full power and authority to:

   a. Make Gifts: My agent may make gifts of any of my property, outright, in trust, or otherwise, to my spouse, descendants or charitable organizations, up to the annual aggregate value, per donee, that qualifies for the Federal gift tax exclusion. If I am married and if my spouse agrees to split gifts for Federal gift tax purposes, this limit is instead up to the annual aggregate value, per donee, that qualifies for the Federal gift tax exclusion when split with my spouse, considering any other gifts made by my spouse. For any gifts made to my agent or to anyone that my agent is legally obligated to support, the aggregate value of gifts in any calendar year shall not exceed $5,000 or 5% of the total value of the assets subject to this power of attorney, valued as of the date of the gift.

   b. Transfer Property to Trust: My agent may transfer all or any part of my assets or interests in assets to any trust of which I am a settlor and beneficiary.

   c. Deal with Powers: My agent may exercise, release, or allow any powers I have to lapse, including any power of appointment or power to amend, revoke, or withdraw from any trust. The power to amend, revoke, or withdraw from any trust that I have created may only be exercised as provided in that trust document. My agent does not have the power to exercise any trustee powers of an irrevocable trust of which my agent is a settlor and not a trustee.

   d. Make Loans: My agent may loan my property to my spouse or descendants, their personal representatives, or trustees of any trusts for their benefit. These loans may be made on the interest and security terms that my agent deems appropriate.

   e. Deal with Retirement Accounts: My agent may take any action to establish any type of retirement account. My agent may contribute to any existing or new retirement account, rollover or transfer benefits into other retirement accounts, manage any retirement accounts, and make withdrawals as may be required by law or make any other withdrawals that may be necessary for my health, education, maintenance, and support. My agent may also apply for and make elections for any retirement account in which I am a participant, receive benefits, and distribute benefits to me or for my benefit, and designate or change beneficiaries on retirement accounts. My agent does not have the power to designate himself or herself as beneficiary on any retirement account, unless my agent is my spouse.

   f. Seek Judicial Enforcement: My agent may seek court orders that mandate acts that my agent deems appropriate, if necessary to compel a third party to comply with such acts. My agent may also seek court orders enjoining acts that my agent has not authorized. My agent may also sue or bring actions against any third party who fails to comply with the authorized acts and direction of my agent and my agent may seek damages of any type.

   g. Exercise Powers with Respect to Banking and Financial Institutions: My agent may exercise any powers granted with respect to banking and financial institutions under applicable law.

h. Access and Manage Digital Assets: My agent may act on my behalf with respect to all digital assets and digital accounts, including electronic devices, electronic accounts, online accounts, email accounts, financial accounts, and any other type of electronic, digital, or online accounts or items. My agent has full authority to access and manage my digital assets, digital devices of any type, and online accounts, to the maximum extent permitted under applicable state and federal law.

i. Other Acts: My agent may do anything I can do through an agent for the welfare of my spouse, descendants, dependents, pets, or to preserve relationships with my spouse, descendants, other relatives, friends, and organizations.

3. **Limitations on Agent's Authority:** In addition to the limits provided within the powers listed above, my agent is subject to the following limits and restrictions:

   a. Fiduciary Capacity: My agent shall exercise any powers granted by this document in a fiduciary capacity.

   b. Limits on Power to Appoint Assets: My agent does not have the power to give, assign, or disclaim any of my assets or interests to my agent or the estate of my agent or to creditors of my agent or the estate of my agent. My agent does not have the power to use any of my assets to discharge the legal obligations of my agent, other than any legal obligations to me or legal obligations that I also have. My agent is not limited from using my assets to discharge any legal obligation I have to my agent.

4. **Compensation and Reimbursement:** My agent is entitled to receive reasonable compensation for the services provided pursuant to this Power of Attorney. My agent is entitled to reimbursement for all reasonable costs and expenses actually incurred and paid by my agent on my behalf.

Notwithstanding any other provision of this document, my agent shall abide by the following instructions. To the extent that any of the following provisions limit the authority of my agent described above, the provisions below shall control and supersede any provisions listed above.

Additional Instructions

_____

_____

_____

_____

_____

UNLESS YOU DIRECT OTHERWISE ABOVE, THIS POWER OF ATTORNEY IS EFFECTIVE IMMEDIATELY AND WILL CONTINUE UNTIL IT IS REVOKED.

This Power of Attorney will continue to be effective even though I become incapacitated.

STRIKE THE PRECEDING SENTENCE IF YOU DO NOT WANT THIS POWER OF ATTORNEY TO CONTINUE IF YOU BECOME INCAPACITATED.

Exercise of Power of Attorney

If I have designated more than one agent, the agents are to act _____.

IF YOU APPOINTED MORE THAN ONE AGENT AND YOU WANT EACH AGENT TO BE ABLE TO ACT ALONE WITHOUT THE OTHER AGENT JOINING, WRITE THE WORD "SEPARATELY" IN THE BLANK SPACE ABOVE. IF YOU DO NOT INSERT ANY WORD IN THE BLANK SPACE, OR IF YOU INSERT THE WORD "JOINTLY," THEN ALL OF YOUR AGENTS MUST ACT OR SIGN TOGETHER.

I agree that any third party who receives a copy of this document may act under it. Revocation of this Power of Attorney is not effective as to a third party until the third party has actual knowledge of the revocation. I agree to indemnify the third party for any claims that arise against the third party because of reliance on this Power of Attorney.

Signed this day of _____.

_____
Signature
John Smith
Principal

BY ACCEPTING OR ACTING UNDER THE APPOINTMENT, THE AGENT (ATTORNEY-IN-FACT) ASSUMES THE FIDUCIARY AND OTHER LEGAL RESPONSIBILITIES OF AN AGENT.

Certificate of Acknowledgment of Notary Public – *Optional*

A notary public or other officer completing this certificate verifies only the identity of the individual who signed the document to which this certificate is attached, and not the truthfulness, accuracy, or validity of that document.

State of California
County of _____

On _____ before me, _____,
personally appeared _____John Smith_____,
who proved to me on the basis of satisfactory evidence to be the person(s) whose name(s) is/are subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/ her/their authorized capacity(ies), and that by his/her/their signature(s) on the instrument the person(s), or the entity upon behalf of which the person(s) acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of the State of California that the foregoing paragraph is true and correct.

WITNESS my hand and official seal:

_____
Notary Public **Personalized Seal**

Notice to Person Executing Durable Power of Attorney

A durable power of attorney is an important legal document. By signing the durable power of attorney, you are authorizing another person to act for you, the principal. Before you sign this durable power of attorney, you should know these important facts:

Your agent (attorney-in-fact) has no duty to act unless you and your agent agree otherwise in writing.

This document gives your agent the powers to manage, dispose of, sell, and convey your real and personal property, and to use your property as security if your agent borrows money on your behalf. This document does not give your agent the power to accept or receive any of your property, in trust or otherwise, as a gift, unless you specifically authorize the agent to accept or receive a gift.

Your agent will have the right to receive reasonable payment for services provided under this durable power of attorney unless you provide otherwise in this power of attorney.

The powers you give your agent will continue to exist for your entire lifetime, unless you state that the durable power of attorney will last for a shorter period of time or unless you otherwise terminate the durable power of attorney. The powers you give your agent in this durable power of attorney will continue to exist even if you can no longer make your own decisions respecting the management of your property.

You can amend or change this durable power of attorney only by executing a new durable power of attorney or by executing an amendment through the same formalities as an original. You have the right to revoke or terminate this durable power of attorney at any time, so long as you are competent.

This durable power of attorney must be dated and must be acknowledged before a notary public or signed by two witnesses. If it is signed by two witnesses, they must witness either (1) the signing of the power of attorney or (2) the principal's signing or acknowledgment of his or her signature. A durable power of attorney that may affect real property should be acknowledged before a notary public so that it may easily be recorded.

You should read this durable power of attorney carefully. When effective, this durable power of attorney will give your agent the right to deal with property that you now have or might acquire in the future. The durable power of attorney is important to you. If you do not understand the durable power of attorney, or any provision of it, then you should obtain the assistance of an attorney or other qualified person.

Notice to Person Accepting the Appointment as Attorney-in-Fact

By acting or agreeing to act as the agent (attorney-in-fact) under this power of attorney you assume the fiduciary and other legal responsibilities of an agent. These responsibilities include:

1. The legal duty to act solely in the interest of the principal and to avoid conflicts of interest.
2. The legal duty to keep the principal's property separate and distinct from any other property owned or controlled by you.

You may not transfer the principal's property to yourself without full and adequate consideration or accept a gift of the principal's property unless this power of attorney specifically authorizes you to transfer property to yourself or accept a gift of the principal's property. If you transfer the principal's property to yourself without specific authorization in the power of attorney, you may be prosecuted for fraud and/or embezzlement. If the principal is 65 years of age or older at the time that the property is transferred to you without authority, you may also be prosecuted for elder abuse under Penal Code Section 368. In addition to criminal prosecution, you may also be sued in civil court.

I have read the foregoing notice and I understand the legal and fiduciary duties that I assume by acting or agreeing to act as the agent (attorney-in-fact) under the terms of this power of attorney.

_____ _____

Date Signature of Agent